

SENATE BILL 1721

By Harshbarger

AN ACT to amend Tennessee Code Annotated, Title 3;
Title 4; Title 29; Title 39 and Title 40, relative to the
general assembly.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 3, Chapter 3, Part 1, is amended by
adding the following as a new section:

3-3-1__.

(a) As used in this section:

(1) "Employee of the executive branch" includes, but is not limited to, a
liaison, employee, or agent of the office of the governor, or the executive head or
a liaison, employee, or agent of a department or agency of the executive branch
of this state;

(2) "Legislative measure" means a proposed bill or resolution, including
an amendment to such bill or resolution; and

(3) "Material statement" means a written or oral statement that is offered
for the truth of the matter contained in the statement.

(b)

(1) The chair of a legislative committee may require an employee of the
executive branch appearing before the committee to offer a material statement
under oath or affirmation, subject to the penalty of perjury.

(2) An oath or affirmation required under subdivision (b)(1) may be
administered by the chair of the respective committee.

(c) The executive director of the fiscal review committee appointed pursuant to § 3-7-107 shall require an employee of the executive branch who submits a material statement for the purpose of analyzing the fiscal impact of a legislative measure, or for the purpose of preparing and distributing a fiscal note required under § 3-2-107, as applicable, to execute an affidavit attesting that the material statement submitted is true and correct, subject to the penalty of perjury.

(d)

(1) If the chair of a legislative committee or the executive director of the fiscal review committee has reasonable suspicion supported by facts that an employee of the executive branch has submitted a false material statement, in whole or in part, with the intent to deceive while under oath or affirmation pursuant to subsection (b) or subsection (c), as applicable, then the chair or executive director shall provide written notice to:

(A) The speaker of the senate if the material statement was germane to a legislative measure before a committee of the senate;

(B) The speaker of the house of representatives if the material statement was germane to a legislative measure before a committee of the house of representatives; or

(C) Both speakers if the material statement was germane to a legislative measure before a joint committee of both houses of the general assembly.

(2) Upon receipt of notice under subdivision (d)(1)(A) or (d)(1)(B), the respective speaker may refer the allegation of the submission of one (1) or more false material statements to the appropriate district attorney general for prosecution in accordance with § 3-3-121(c). Upon receipt of notice under

subdivision (d)(1)(C), the speakers may jointly refer such allegation to the appropriate district attorney general for prosecution. Prior to the referral of an allegation, the speaker or speakers, as applicable, may initiate an investigation into the allegation for the purpose of determining whether sufficient evidence exists to justify such referral for prosecution.

(e) An employee of the executive branch who is found to have submitted one (1) or more false material statements under this section with the intent to deceive commits the offense of perjury under § 39-16-702(a).

(f) This section does not apply to testimony provided or documents submitted pursuant to a subpoena issued pursuant to this chapter 3 or § 3-7-106.

SECTION 2. Tennessee Code Annotated, Section 3-3-121, is amended by adding the following new subsection (c):

(c) A district attorney general who receives a referral for prosecution under SECTION 1(d)(2) may prosecute the individual who is the subject of the referral in a court of competent jurisdiction for such prosecution.

SECTION 3. Tennessee Code Annotated, Section 39-16-702(b), is amended by adding the following new subdivision (4):

(4) Perjury committed under SECTION 1 is a Class C misdemeanor.

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it.